

		11-17, 20, 21, 28, and 31-33. Defendant's reply contends Plaintiffs' April 15, 2026 supplemental responses supplemented 27 interrogatories and 32 requests for production, which is the same number of requests at issue in this motion. (Reply, 3:7-9.) The parties are ordered to appear and confirm which of these interrogatories and requests, if any, were supplemented in the April 15, 2026 supplemental responses.
3	Clark vs. Streamline Performance Inc 2025-01456342	Motion to Compel Arbitration Defendants Streamline Performance, Inc. dba Peachtree Debt Relief's ("Streamline"), KVC Group, LLC dba National Credit Partners', Michael Nguyen's and Kim Vo's motion to compel arbitration is granted. Plaintiff's request for judicial notice is granted. Defendant submits evidence showing that on 11/9/22, in connection with his employment onboarding with Streamline, Plaintiff received and signed the Arbitration Agreement, which states in part: This Agreement to Arbitrate (hereinafter "Agreement") is entered into by and between Streamline Performance Inc dba Peachtree Debt Relief and its subsidiary and affiliated companies, and each of their officers, directors, agents, benefit plans, insurers, successors, and assigns (hereinafter collectively the "Company") and Employee.... The Company and Employee mutually agree that any dispute or controversy arising out of or in any way related to any Disputes shall be resolved exclusively by final and binding arbitration pursuant to the Federal Arbitration Act. Such arbitration shall be held in Orange County, California pursuant to the Model Rules for Arbitration of Employment Disputes of the American Arbitration Association then in effect, which can be found at: https://www.adr.org/sites/default/files/Employment%20Rules.pdf. For purposes of this Agreement, the term "Disputes" means and includes any claim or action arising out of or in any way related to the hire, employment, remuneration, separation or termination of Employee. [...]

(Vo Decl., ¶ 13, Ex. A.)

While Plaintiff states he does not recall the agreement, he does not dispute that he signed it via Streamline’s onboarding process. (Clark Decl., ¶¶ 4-8.) “It is hornbook law that failing to read an agreement before signing it does not prevent formation of a contract.” (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 759.) “That settled rule cannot be evaded by adding, ‘and if I had read the contract, I wouldn’t’ve signed it.’” (*Id.*) Thus the Court finds that an arbitration agreement exists, executed by the parties.

Plaintiff contends that the agreement should not be enforced because it is unconscionable.

Unconscionability is one ground on which a court may refuse to enforce a contract, including an arbitration agreement. (Civ. Code §1670.5.) Whether a provision is unconscionable is a question of law. (Civ. Code §1670.5(a); *Flores v. Transamerica* (2001) 93 Cal. App. 4th 846, 851.)

To be unenforceable, a contract must be both procedurally and substantively unconscionable, but the elements need not be present in the same degree. The analysis employs a sliding scale: “...the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal. 4th 83, 114; *Mercuro v. Superior Court* (2002) 96 Cal. App. 4th 167, 174-75.)

Plaintiff argues that the agreement is procedurally unconscionable because it was presented on a take it or leave it basis. However, contracts of adhesion like this are not per se unconscionable. (See *Powers v. Dickson, Carlson & Campillo* (1997) 54 Cal.App.4th 1102, 1110 (“arbitration provision in an adhesion contract is legally enforceable unless the provision (1) does not fall within the reasonable expectations of the weaker party, or (2) is unduly oppressive or unconscionable.”).)

Plaintiff additionally argues that because the agreement was not explained to him, it is procedurally unconscionable. (Clark Decl., ¶ 5.) But, Plaintiff does not state that he was prevented from asking questions or taking time to read and review the documents. And, Defendant’s CEO, Kim Vo, declares that employees had unlimited time to review the Arbitration Agreement and were able to ask questions. (Vo Decl., ¶¶ 9-10.)

Plaintiff also contends there is procedural unconscionability because in order to access the rules of arbitration, he was required to click on a link to a 39-page document. These rules provided that “[t]he arbitrator may grant any remedy, relief, or outcome that the parties could have received in court, including awards of attorney’s fees and costs, in accordance with applicable law.” (See RFJN, Ex. A at Rule 46(a).) This does not demonstrate unconscionability. Clicking on a link to read the rules is not oppressive or a hardship. Given that the agreement provides that the law will be the same as if this case remained in court, there is no surprise or oppression.

Furthermore, the law provides that “an unsuccessful FEHA plaintiff should not be ordered to pay the defendant’s fees or costs unless the plaintiff brought or continued litigating the action without an objective basis for believing it had potential merit.” (*Williams v. Chino Valley Independent Fire Dist.* (2015) 61 Cal.4th 97, 100 [citing Gov’t Code, § 12965].) Accordingly, both in court and in arbitration, Plaintiff will not be responsible for Defendant’s costs unless it is found that his claims are frivolous.

With respect to substantive unconscionability, Plaintiff argues that the agreement is one-sided. This is not supported by the language in the agreement which states, “The Company and Employee mutually agree that any dispute or controversy arising out of or in any way related to any Disputes shall be resolved exclusively by final and binding arbitration pursuant to the Federal Arbitration Act. “

Plaintiff also contends that the confidentiality provision in the arbitration rules is substantively unconscionable. The confidentiality provision only prohibits the arbitrator from disclosing information related to the award. It does not affect Plaintiff as it states “[u]nless otherwise required by applicable law, court order, or the parties’ agreement, the AAA and the arbitrator shall keep confidential all matters relating to the arbitration or the award.” (RFJN, Rule R-42.)

Because Plaintiff has not established that the arbitration agreement is both procedurally and substantively unconscionable so as to render it unenforceable, Defendants’ motion is granted.

This matter is hereby stayed pursuant to Code Civ. Proc., § 1281.4.

The Court sets a status conference on 2/22/2027 at 2:00 p.m. in Dept. C11.

Defendants shall give notice.